

Warsaw, May 22, 2023

Decision

DOKE.561.3.2023

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2023, item 775) in connection with Article 7 paragraphs 1 and 2, Article 60 of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and based on Article 57 paragraph 1 letters a) and h), Article 58 paragraph 2 letter b) in connection with Article 31 and Article 58 paragraph 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as "Regulation 2016/679", after conducting an ex officio administrative proceeding regarding the imposition of an administrative monetary penalty on Mr. K. R. conducting business under the name G. based in W. at al. (...), the President of the Personal Data Protection Office,

issues a reprimand to Mr. K. R. conducting business under the name G. based in W. at al. (...) for violating the provisions of Article 31 and Article 58 paragraph 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide the President of the Personal Data Protection Office access to personal data and information necessary to fulfill his tasks in the proceedings with reference number DS.523.6921.2022.

JUSTIFICATION

Factual Background

A complaint was submitted to the President of the Personal Data Protection Office (hereinafter referred to as "the President of UODO") by Mr. A. M., residing in W. at al. (...) (hereinafter referred to as "the Complainant") regarding irregularities in the processing of his personal data by Mr. K. R. conducting business under the name G. based in W. at al. (...) (hereinafter referred to as "the Entrepreneur"), consisting of the failure to fulfill the right of access to the Complainant's data in accordance with Article 15 of Regulation 2016/679. According to the entry in the Central Register and Information on Economic Activity (CEIDG), the predominant activity of the Entrepreneur is specialized medical practice (PKD code 86.22.Z). The subject of the remaining activities of the Entrepreneur includes, among others, other forms of non-formal education not elsewhere classified and other professional, scientific, and technical activities not elsewhere classified. The Complainant's complaint was related to the Entrepreneur's activity consisting of providing medical practice.

In order to address the Complainant's complaint, the President of the Personal Data Protection Office initiated administrative proceedings under reference number DS.523.6921.2022, within which – based on Article 58 paragraph 1 letters a) and e) of Regulation 2016/679 – by letter dated January 17, 2023, he summoned the Entrepreneur to respond to the content of the complaint and to provide explanations regarding the matter, in particular to answer questions on issues significant for the case, as well as to present any evidence confirming the submitted explanations. This letter was received by the Entrepreneur on January 20, 2023, but remained without any response from the Entrepreneur.

In connection with the above, the President of UODO, by letter dated February 23, 2023, again requested the Entrepreneur to provide explanations regarding the matter. This summons was received by the addressee on February 27, 2023, and also remained without any response from the Entrepreneur.

In the letter from the President of UODO dated February 23, 2023, there was included a warning directed to the Entrepreneur that failure to respond to the summons may result, due to the lack of cooperation with the President of UODO in the performance of his duties and the failure to provide access to personal data and information necessary for the President of UODO to fulfill his tasks, in the imposition on the Entrepreneur – in accordance with Article 83 paragraph 4 letter a) or Article 83 paragraph 5 letter e) of Regulation 2016/679 – of an administrative monetary penalty of up to 20,000,000 EUR or up to 4% of the enterprise's turnover.

The above factual circumstances were established by the President of UODO based on the entirety of the official correspondence directed to the Entrepreneur, contained in the files of the proceedings under reference number DS.523.6921.2022. This correspondence fully and exhaustively documents all attempts by the President of UODO to gain access to the information necessary to fulfill his tasks, that is, in this case, to consider the matter under reference number DS.523.6921.2022, and on the other hand reflects the lack of response from the Entrepreneur to the requests of the President of UODO.

****Proceedings****

In connection with the failure of the Entrepreneur to provide the information necessary to resolve the case with reference number DS.523.6921.2022, the President of the Personal Data Protection Office (UODO) initiated, ex officio – based on Article 83(4)(a) and Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding (with reference number DOKE.561.3.2023) regarding the imposition of an administrative monetary penalty on the Entrepreneur for violating Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679.

The Entrepreneur was informed of the initiation of the proceedings by a letter dated April 6, 2023. In this letter, the Entrepreneur was summoned – for the purpose of determining the basis for the penalty, based on Article 101a(1) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781) – to present a financial statement or another document showing the amount of turnover and financial result achieved by the Entrepreneur in 2022. The Entrepreneur was informed of the nature of the alleged violation; he was also instructed about the sanctions that threaten for this violation, as well as about the still existing possibility of submitting explanations, which the President of UODO requested from him in the proceedings with reference number DS.523.6921.2022, which could have a mitigating effect on the amount of the administrative monetary penalty imposed in this case.

Furthermore, the Entrepreneur was informed of the possibility to express his opinion – before the issuance of the administrative decision, regarding the collected evidence and materials as well as the submitted requests. This letter, despite being addressed to the delivery address which is also the address of the permanent place of business of the Entrepreneur disclosed in the Central Register and Information on Economic Activity (CEIDG) (to which previous correspondence was directed), was not received by the Entrepreneur and was deemed – based on Article 44 § 4 of the Code of Administrative Procedure (k.p.a.) – to have been delivered to the Entrepreneur.

In a telephone conversation held with the Entrepreneur on May 10, 2023 (tel. no. (...)), an employee of the personal data protection authority conveyed information about the ongoing proceedings regarding the imposition of an administrative monetary penalty on the Entrepreneur due to the lack of cooperation from the Entrepreneur with the President of UODO in the proceedings with reference number DS.523.6921.2022 and the failure to provide the authority with access to personal data and information necessary for this proceeding.

In response to the aforementioned telephone conversation, the Entrepreneur submitted explanations by letter dated May 10, 2023, which allowed the President of UODO to continue the proceedings in the case with reference number DS.523.6921.2022. In a separate letter, also dated May 10, 2023, the Entrepreneur justified the reasons for his silence in the proceedings with reference number DS.523.6921.2022, which the President of UODO accepted. The Entrepreneur indicated that his silence in the proceedings with reference number DS.523.6921.2022 was primarily due to the erroneous assumption that he had already provided the President of UODO with the appropriate

explanations. During this period, the Entrepreneur was also providing explanations to another authority and was convinced that the explanations to the President of UODO had also been sent by him.

Realizing that he had not provided the President of UODO with access to personal data and information necessary for the performance of his tasks, including the consideration of the case with reference number DS.523.6921.2022, the Entrepreneur apologized for the delay in responding to the summons from the personal data protection authority and requested that the imposition of an administrative monetary penalty be waived.

****Legal Provisions****

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO – as the supervisory authority within the meaning of Article 51 of Regulation 2016/679 – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of UODO considers, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)).

To enable the realization of the tasks defined in this way, the President of UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the proceedings conducted, including the power to order the controller and the processor to provide all information necessary for the performance of his tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and all information necessary for the performance of his tasks (Article 58(1)(e)). Furthermore, the President of UODO has a number of corrective powers specified in Article 58(2), including the issuance of reprimands to the controller or processor in the event of violations of the provisions of Regulation 2016/679 by processing operations.

A violation of the provisions of Regulation 2016/679, consisting of the failure of the controller or processor to provide access to the data and information mentioned above, resulting in a violation of the powers of the authority specified in Article 58(1) (including the power to obtain data and information necessary for the performance of his tasks), is subject – according to Article 83(5)(e) in fine of Regulation 2016/679 – to an administrative monetary penalty of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual global turnover from the previous financial year, with the applicable amount... higher.

The President of the UODO, acting on the basis of Article 58(2)(b) of Regulation 2016/679, may also consider it justified to issue a warning to the administrator regarding the identified violation of Article 58(1)(e) of Regulation 2016/679. According to Recital 148 of Regulation 2016/679, in order for the enforcement of the provisions of the regulation to be more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a warning. However, due attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken to minimize the damage, and any other aggravating or mitigating factors.

Legal Assessment

Referring the above-mentioned provisions of Regulation 2016/679 to the established factual state in this case, it should be stated that the Entrepreneur, being the administrator of the personal data of the Complainant as a party to the proceedings conducted by the President of the UODO under case number DS.523.6921.2022, undoubtedly violated the obligation to provide the President of the UODO with access to information necessary for the performance of his tasks – in this case, for the substantive resolution of the matter. However, in response to the information about the initiation of administrative proceedings in this case under case number DOKE.561.3.2023, the Entrepreneur submitted explanations allowing the President of the UODO to continue the proceedings in the case under

number DS.523.6921.2022. In the opinion of the President of the UODO, the actions of the Entrepreneur undoubtedly resulted in a lack of access to information necessary for the substantive resolution of the Complainant's case for the period from the moment the deadline for submitting explanations (set in the first letter from the President of the UODO dated January 17, 2023) expired, which was January 24, 2023, until the submission of explanations by the Entrepreneur in a letter dated May 10, 2023. The justification presented by the Entrepreneur for the lack of response to the calls from the President of the UODO does not relieve him of responsibility for the identified omission. However, the reasons indicated by the Entrepreneur for the lack of cooperation with the supervisory authority should be taken into account as credible and having a significant impact on the assessment of the Entrepreneur's behavior in the context of the choice of the sanction applied to him in these proceedings.

In the opinion of the President of the UODO, the aforementioned violation was unintentional. All circumstances of the case, considered collectively, allow for the conclusion that the lack of response from the Entrepreneur to the calls for explanations was not deliberate but resulted primarily from the erroneous assumption that the Entrepreneur had already provided the President of the UODO with the appropriate explanations. However, the Entrepreneur engaged in cooperation with the data protection authority and provided explanations necessary for the further conduct of the proceedings under case number DS.523.6921.2022, as well as explained the reason for the earlier lack of reaction in this proceeding. In the opinion of the supervisory authority, the subsequent, active attitude of the Entrepreneur indicates a willingness to continue cooperation with the authority. At this point, it should also be noted that the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of imposing an administrative monetary penalty became a clear signal for the Entrepreneur that further evasion of obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by these provisions.

The President of the UODO concluded that in this case, issuing a warning, in light of the criteria specified in Article 83(2) of Regulation 2016/679, would be sufficient and at least as "effective, proportionate, and deterrent" as imposing a monetary penalty (see Article 83(1) of Regulation 2016/679). It should also be noted that in the event of a similar occurrence in the future, any warning issued by the President of the UODO to the Entrepreneur will be taken into account when assessing the grounds for the possible imposition of an administrative penalty, in accordance with the principles specified in Article 83(2) of Regulation 2016/679.

In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

Instruction

The decision is final. The party has the right to file a complaint with the Provincial Administrative Court in Warsaw against the decision within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the complaint is 200 PLN. In the proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's request submitted before the initiation of the proceedings or during the proceedings. The request is exempt from court fees.

Print article

Metadata

Provider:

Department of Penalties and Enforcement

Information created by:

Jan Nowak

2023-05-22

Information entered by:

Mathias Proch
2023-06-13 12:22:01
Last modified by:
Karolina Jastalska
2023-07-28 10:22:50